

23STLC03027 23STLC03027

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-23

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Case Number: 23STLC03027 Hearing Date: June 23, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Josie Macadangdang's Motion for Order Vacating and

Setting Aside Judgment of Case is denied.

Analysis:

On May 9, 2023, Plaintiff Josie Macadangdang ("Plaintiff")

in propria persona filed the instant action against Defendants Amy Morales

("Defendant Morales") and Excellent HomeCare, LLC ("Defendant Excellent

HomeCare"). Plaintiff filed a First Amended Complaint on July 14, 2023.

An answer was filed on September 8, 2023 indicating it was

for "Amy Morales and Excellent HomeCare, LLC" but "Excellent HomeCare LLC" is

crossed off. (Answer, filed 09/08/23, p. 2.) The answer was filed by Defendant

Morales in propria persona. Plaintiff made multiple attempts to have default

entered against Defendant Excellent HomeCare starting in December 2023 through

March 2024. These attempts were rejected by the clerk's office for various

reasons. On October 17, 2024, Defendant Morales filed a substitution of attorney. Default was entered against Defendant Excellent HomeCare on October 18, 2024.

On November 5, 2024, Defendant Excellent HomeCare filed a Motion to Set Aside Default. The Court granted the motion and vacated the default against Defendant Excellent HomeCare on March 12, 2026. (Minute Order, 03/12/25.) Defendant Excellent HomeCare filed its Answer to the First Amended Complaint two days later and trial was set for July 17, 2025. (Order on Stip to Continue Trial, 04/30/25.) On July 17, 2025, the parties appeared and Plaintiff requested a continuance due to a family emergency. (Minute Order, 07/17/25.) Trial was then set for October 21, 2025. (Ibid.) On October 21, 2025, over Plaintiff's objections, the Court assigned the case out for trial to Department S29 at the Long Beach Courthouse at 1:30 pm. (Minute Order, 10/21/25, Non-Jury Trial.) Plaintiff called in to the Long Beach Courthouse to contend she could not appear due to an emergency, declined to appear remotely, and the phone call cut off. (Minute Order, 10/21/25, Non-Jury Trial; Non-Jury Trial.) Trial was held without Plaintiff, and following Defendant's presentation of evidence, the Court ordered judgment for Defendants and against Plaintiff. (Ibid.) The Court entered judgment in favor of Defendants on November 20, 2025.

On April 9, 2026, Plaintiff filed the instant Motion for

Order Vacating and Setting Aside Judgment of

Case. Defendants filed an opposition on May 27, 2026, and Plaintiff

replied on June 15, 2026.

Discussion

Plaintiff brings the instant

Motion pursuant to Code of Civil Procedure section 473, subdivision (b), for

discretionary relief based on excusable mistake, surprise, inadvertence, or

neglect. Under this statute, the Motion must be made within a reasonable time, no

more than six months after entry of the order from which relief is sought, and

must be accompanied by an affidavit of fault attesting to the party's excusable

mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b);

English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The

motion must also be accompanied by a copy of the moving defendant's proposed

pleading. (Code Civ. Proc., § 473, subd. (b).) This can be corrected if the defendant

submits a proposed responsive pleading by the hearing date. (Code Civ. Proc., §

473, subd. (b); Carmel, Ltd. v. Tavoussi (2009) 175 Cal.App.4th 393,

403.)

Initially, the Court notes that Plaintiff's

opening and reply memoranda are in violation of the page limits set by the

California Rules of Court. Unless otherwise provided by Rule 3.1114 or upon

court order, an opening brief may not exceed 15 pages and a reply brief ten

pages. (Cal. Rules of Court, rule 3.1113(d).) Plaintiff's moving brief is 52

pages long and the reply brief is 58 pages long. The Court nonetheless

considers the papers, despite this violation of the Rules and the burden it

places on the Court and opposing party.

The Motion does not establish

the requisite showing of excusable mistake, inadvertence, surprise, or

neglect. Plaintiff contends that they were surprised by the trial time and

location being changed from 8:30 am at the Spring Street Courthouse to 1:30 pm

at the Long Beach Courthouse. The Third Amended Standing Order for this

Department places parties on notice that cases set for trial in Department will

be assigned to another court for trial. That order states that parties must

appear ready for trial with all listed documents, and that "FAILURE TO

PROVIDE ANY OF THE AFOREMENTIONED DOCUMENTS ON THE TRIAL DATE MAY CAUSE A DELAY

IN THE CASE BEING ASSIGNED TO A TRIAL COURT." (3d Amended Standing

Order, 05/09/23, p. 4:9-11, *italics added*.) The website for the Los Angeles

Superior Court also has a specific page regarding Limited Civil cases and a

list of judges and courtrooms where those cases may be heard for trial,

including locations in Long Beach, Pomona, Compton and other locations. (Opp.,

Murphy Decl., ¶4 n. 2 and Exh. 3.) This

information is accessible to all litigants and is chargeable to a “reasonably

prudent” plaintiff. (See Luri v.

Greenwald (2023) 107 Cal. App. 4th 1119, 1128.) Consistent with the foregoing, the Court’s

calendar on that date identified three cases set for trial at the same time. (See Mot., at 6 (clip of calendar

excerpt.) Thus, Plaintiff has not

demonstrated that their surprise regarding the assignment was excusable.

Further, at several additional points, Plaintiff had the

opportunity to respond in a manner that could have prevented trial proceeding

in Plaintiff’s absence. Plaintiff

received notice of the assignment of the trial to the Long Beach Courthouse

with sufficient time to appear on time for the 1:30 p.m. trial. Plaintiff was given an opportunity to

exercise a peremptory challenge, which would have resulted in a different trial

court assignment, but declined to do so.

(Opp., Murphy Decl., ¶¶6-8; Minute Order, 10/21/205; Reply, Macadangdang

Decl., ¶3.) Plaintiff did not attempt to

contact the Long Beach court regarding any delay in arrival, due to her

husband’s hernia or otherwise, until 12:14 p.m.

(Mot. at 28.) Once Plaintiff did

reach the trial court by telephone, the court offered to permit Plaintiff to

appear by telephone, which offer Plaintiff rejected. (Mot. at 29-33.) After the call terminated, Plaintiff did not call back. (Minute Order, 10/21/2025.) Plaintiff's motion does not refer to efforts to charge her phone or to find another way to reach the court after the call terminated.

The Court does not find on this record that Plaintiff's Motion describes circumstances that warrant setting aside the judgment. (Code Civ. Proc., § 473, subd. (b).)

Conclusion

Plaintiff Josie Macadangdang's Motion for Order Vacating and

Setting Aside Judgment of Case is denied.

Judicial Assistant to give notice.